

CHAPTER 59.

An Act to amend the enactments relating to the relief of the poor in England and Wales so as to secure uniformity throughout Great Britain in the provisions relating to the disregarding of sick pay, maternity benefit, and wounds or disability pensions. [16th November 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section forty-eight of the Poor Law Act, 1930, (which makes provision as to the matters to be disregarded in granting outdoor relief to members of friendly societies and certain other persons) shall have effect subject to the following amendments, that is to say :—

Amendment
of 20 & 21
Geo. 5.c.17.
s. 48.

(a) in subsection (1) of the said section after the words “ friendly society ” wherever those words occur therein, there shall be inserted the words “ or trade union ”;

(b) at the end of the said section there shall be inserted the following subsections, that is to say :—

“ (3) The last foregoing subsection shall not apply to maternity benefit and in granting outdoor relief to any person the council of a county or county borough shall not take into consideration any maternity benefit under the National Health Insurance Acts, 1924 to 1932, except any increase of such benefit by way of additional benefit and any second maternity benefit.

(4) In granting outdoor relief to any person the council of a county or county borough shall not take into consideration any wounds or disability pension received by any person whose resources are taken into account in relieving him, except so far as it exceeds one pound a week.

(5) In this section the expression 'wounds or disability pension' means any retired pay or pension to which section sixteen of the Finance Act, 1919, applies."

9 & 10
Geo. 5. c. 32.

Citation,
repeal,
extent and
commence-
ment.

22 & 23
Geo. 5. c. 54.

2.—(1) This Act may be cited as the Poor Law Act, 1934, and the Poor Law Act, 1930, and this Act may be cited together as the Poor Law Acts, 1930 and 1934.

(2) Paragraph (a) of subsection (1) of section one of the Transitional Payments (Determination of Need) Act, 1932, so far as it applies to the granting of outdoor relief under the enactments relating to the poor law is hereby repealed.

(3) This Act shall not extend to Scotland or to Northern Ireland.

(4) This Act so far as it relates to wounds or disability pensions and to the Transitional Payments (Determination of Need) Act, 1932, shall come into operation on such date as the Minister of Health may by order appoint.

